

# STATE OF NEW YORK

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7894--A

2025-2026 Regular Sessions

## IN ASSEMBLY

April 11, 2025

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Introduced by M. of A. PAULIN, STECK -- read once and referred to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to permitting the use of cremation or natural organic reduction as the method of disposition for certain decedents

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (c) of subdivision 2 of section 4201 of the  
2 public health law, as amended by chapter 76 of the laws of 2006, is  
3 amended to read as follows:

4 (c) The person in control of disposition, pursuant to this section,  
5 shall faithfully carry out the directions of the decedent to the extent  
6 lawful and practicable, including consideration of the financial capaci-  
7 ty of the decedent's estate and other resources made available for  
8 disposition of the remains. The person in control of disposition shall  
9 also dispose of the decedent in a manner appropriate to the moral and  
10 individual beliefs and wishes of the decedent provided that such beliefs  
11 and wishes do not conflict with the directions of the decedent. The  
12 person in control of disposition may seek to recover any costs related  
13 to the disposition from the fiduciary of the decedent's estate in  
14 accordance with section eighteen hundred eleven of the surrogate's court  
15 procedure act. Notwithstanding the provisions of this paragraph, a chief  
16 fiscal officer of a county or a public administrator, when having the  
17 right to control the disposition of the remains of such decedent  
18 pursuant to this section and acting reasonably and in good faith, may,  
19 without civil liability, select cremation or natural organic reduction  
20 as the method of disposition for a decedent where the financial  
21 resources of such decedent are limited and such disposition is selected  
22 with the reasonable belief that the method is consistent with the reli-  
23 gious practices of the decedent, provided, that (i) no person having

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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1 higher priority pursuant to this subdivision has claimed the remains of  
2 the decedent within thirty days of their death, or not exceeding ninety  
3 days if established by a county at its option, or (ii) such person  
4 having priority is known and has relinquished their right to control the  
5 decedent's final disposition.

6 § 2. This act shall take effect immediately.